

The court maintains the Case Management Conference date set in this matter for September 29, 2026 8:30 a.m., Department 32. All parties to file and serve an updated Case Management Conference statement 15 days before the conference.

14. 9:01 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLAINTIFF THALBIR OLI'S RESPONSES TO DEFENDANT GOVIND K. SHAHI'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

FILED BY: SHAHI, GOVIND K.

TENTATIVE RULING

This matter is dropped from calendar. See ruling above in Line 13.

15. 9:01 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO SABRIAN HAN'S RESPONSES TO DEFENDANT GOVIND K. SHAHI'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

FILED BY: SHAHI, GOVIND K.

TENTATIVE RULING

This matter is dropped from calendar. See ruling above in Line 13.

Law & Motion

Add On

16. 9:00 AM CASE NUMBER: C24-03530

CASE NAME: MELVIN MANN VS. LUIS ARIAS

*HEARING ON MOTION IN RE: PLAINTIFF'S MOTION TO ENFORCE THE PARTIES' SETTLEMENT AGREEMENT UNDER CCP SECTION 664.6

FILED BY: MANN, MELVIN MARVIN

TENTATIVE RULING

Before the Court is a motion to enforce settlement agreement pursuant to Code of Civil Procedure § 664.6, filed by plaintiff, Malvin Marvin Mann. The motion is **granted**. Plaintiff shall circulate and submit a proposed form of

judgment.

I. Factual Background

Relevant to the present motion, on March 13, 2026, plaintiff and defendants entered into a settlement agreement resolving all issues between the parties. The settlement was entered into after a Zoom mediation was held with Jay Chafetz, Esq. as a neutral. (Declaration of David W. Ginn in Support of Motion, ¶15, Ex. A.)

As part of the agreement, within 20 days of execution, defendants were to record a withdrawal of the *lis pendens* they had recorded on plaintiff's property. In the present motion, plaintiff contends that defendant has not recorded the withdrawal, as required. Defendants' opposition does not dispute this fact, but blames the plaintiff's counsel.

Specifically, the form of the withdrawal, which was drafted by plaintiff's counsel, was purportedly rejected by the Clerk-Recorder. In support of this contention, the opposition presents no supporting declaration or evidence to indicate reasons for rejection. In any event, the defendants do not dispute the authenticity of the settlement agreement attached to plaintiff's counsel's moving declaration.

On April 15, 2026, Judge Treat ordered that this hearing would proceed on a shortened time basis. In the Order, the Court noted that the opposition to the ex parte application did not appear to dispute plaintiff is entitled to the relief sought, and that the motion could be mooted by compliance with the terms. At the time of this writing, nothing has been submitted to indicate compliance.

I. Standard

Pursuant to Code of Civil Procedure, section 664.6:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., §664.6(a).)

California courts have interpreted section 664.6 as creating “a summary, expedited procedure to enforce settlement agreements when certain requirements that decrease the likelihood of misunderstandings are met.” (*Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1429).

“Code of Civil Procedure 664.6 provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement.” (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 citing *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809.) “Section 664.6 states that if the parties to pending litigation enter into a settlement either in writing signed by the parties or orally before the court, the court, upon a motion, may enter judgment pursuant to the terms of the settlement.” (*Hines, supra*, 167 Cal.App.4th at 1182.)

“A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement.” (*Hines, supra*, 167 Cal.App.4th at 1182, citations omitted.) “If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.” (*Ibid.*)

“The statutory language makes clear, however, that a party moving for the entry of judgment pursuant to a settlement under Code of Civil Procedure section 664.6 need not establish a breach of contract to support relief under the statute.” (*Hines, supra*, 167 Cal.App.4th at 1185.) Instead, the Court is authorized to “enter a judgment pursuant to the settlement regardless of whether [a party’s] nonperformance of [their] settlement obligations [were] excused.” (*Ibid.*)

“[A] court’s power to make factual determinations under section 664.6 is generally limited to whether the parties entered into a valid and binding settlement agreement.” (*Viejo Bancorp, Inc. v. Wood*, (1989) 217 Cal.App.3d 200, 209 fn. 4 citing *Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994.) The power to make such factual determinations does not extend “to whether one party had breached the terms of the agreement.” (*Ibid.*) “Judgment may be entered under section 664.6 whether the parties are complying with the terms of the agreement or whether they are not.” (*Ibid.*) Disputes regarding whether a

party breached the settlement agreement “are not relevant to the entry of judgment pursuant to section 664.6.” (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 796.)

I. Analysis

Here, there appears to be no dispute concerning the existence of an agreement or the terms. That defendants are attempting to comply does not negate the merits of the motion. The Court does not, and cannot, make substantive determinations as to whether any party to the settlement has breached that agreement.

In reviewing Exhibit A to plaintiff’s counsel’s declaration, the Court finds that a valid settlement agreement was entered into between the parties “in a writing signed by the parties outside of the presence of the court,” and that such settlement agreement is sufficiently definitive to be enforceable. Accordingly, the Court grants the motion to enter judgment “pursuant to the terms of” the agreement.

**Law & Motion
Add On 3**

**17. 9:00 AM CASE NUMBER: C23-02945
CASE NAME: ARIANA MOORE VS. DOES 1-30, INCLUSIVE
HEARING ON SUMMARY MOTION JUDGEMENT HEARING / CONT'D FROM 4/24/26 PER TR
FILED BY: BIKRAMJIT S. RANDHAWA AS TRUSTEE OF THE RANDHAWA REVOCABLE TRUST, DATED
OCTOBER**

TENTATIVE RULING:

Before the Court is a motion for summary adjudication, or in the alternative summary adjudication of issues filed by defendants Bikram Randhawa, Schlatter Associates, Inc., Brigitte Schlatter, Bikramjit S. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015, and Dalbir K. Randhawa as Trustee of the Randhawa Revocable Trust Dated October 2, 2015. For the reasons set forth, the hearing on the motion is continued to **9:00 a.m. on May**